

The complaint

Mrs L complains Lloyds Bank General Insurance Limited unfairly refused a claim she made for storm damage to her property under her buildings insurance policy.

What happened

In August 2019 Mrs L contacted Lloyds to make a claim. Following heavy rain she'd noticed water coming into her attic.

Initially, once Lloyds explained about the policy excess, Mrs L said she'd carry out the repairs herself, but she later asked Lloyds to register a claim as she was worried about her roof following comments from her builder. Lloyds visited Mrs L's property shortly after to look at the damage, but having done so, it declined the claim. It didn't think the damage could have been caused by a one-off storm event.

Mrs L complained to Lloyds, she said her builder had confirmed the damage to be storm damage. She said the builder had told her if the damage had happened gradually he'd expect to see damp and water marks inside the property, but as there weren't any he thought it was a storm that had caused the damage.

Mrs L also asked for her premiums to be returned as she wasn't covered for storm damage as she thought she was.

Our investigator didn't think Lloyds had acted unfairly in declining the claim. Mrs L didn't accept that, so the matter has come to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Mrs L's policy does cover loss or damage caused by a storm, so on the face of it; damage caused by a storm is potentially covered.

When we look at storm damage cases we ask three questions:

- has it been shown, on balance, there were storm conditions on or around the date the problem occurred?
- is the nature of the damage consistent with storm damage?
- were the storm conditions the main or dominant cause of the damage?

If the answer to all these questions is 'yes' then the claim will succeed. But, if the answer to any of the above questions is 'no' – the claim won't succeed under this section.

Mrs L's policy doesn't define what would be considered a storm. But it seems to accept there were significant wind speeds around the time Mrs L says the damage happened. So I don't think it's in dispute that there were likely storm conditions.

I also think the damage is consistent with storm damage, in that Mrs L noticed water coming into her property from the roof, which could be impacted by storm conditions.

But like our investigator, I don't think it can be said that the storm was the main cause of the damage. So I think the answer to the last question is 'no' and so Lloyds hasn't acted unreasonably in declining the claim. I've explained why below.

The report carried out by Lloyds says that materials on the roof have deteriorated and that the heavy rainfall only highlighted an existing problem. The issue seems to be with a section of flat roof that extends from Mrs L's main roof. The photographs provided by Lloyds show the front edge of the flat roof covering has started to lift and come away. It also shows that where a window meets the roof, the material around the window has worn away and is cracked. Both of these issues appear to be the cause of allowing water to get into the property. I think the photographs support Lloyds' position about the state of the roof, and that such damage would be unlikely as a result of a one-off storm event.

Mrs L has provided comments from the builder who fixed her roof. In his opinion, the roof was fine; just the corner was damaged. Where there is conflicting evidence, our role is to decide what's more likely to have happened and which piece of evidence we're most persuaded by. In this case I'm more persuaded by Lloyds' report. There isn't any other detail provided from Mrs L's builder other than notes of what he repaired. Mrs L said he told her if there was an ongoing problem there would be damp and water marks inside the property. But I think it's likely that water wasn't getting into her property until the storm highlighted the issue. But the fact it hadn't happened before doesn't mean that Lloyds has to cover the claim as storm damage.

Overall, the comments from Mrs L's builder aren't enough to persuade me that Lloyds acted unfairly in relying on its report to decline the claim for storm damage. On balance, taking everything into account, I don't think the storm was the main cause of the damage.

Mrs L has said that her premiums should be returned as she isn't covered as she thought she was, and Lloyds have accepted the insurance knowing the age of the property. But I'm satisfied that she is covered for storm damage if it is shown that storm is the cause of the damage. And just because this claim isn't being paid in this instance doesn't mean Lloyds needs to refund her premiums. So I'm not going to ask Lloyds to do anything differently.

My final decision

My final decision is that I'm not going to ask Lloyds Bank General Insurance Limited to do anything differently.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs L to accept or reject my decision before 23 March 2021.

Michelle Henderson
Ombudsman